

# El Paso County Delia Briones County Clerk

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Instrument Number: 00000000038

ma.mendez

Recorded On: 5/29/2026 11:16:49 AM

Number of Pages: 1

NF Pages: 1

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\*\*\*\*\*THIS PAGE IS PART OF THE INSTRUMENT\*\*\*\*\*

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY because of color or race is invalid and unenforceable under federal law.

## File Information

|                 |             |
|-----------------|-------------|
| Document Number | 00000000038 |
| Receipt Number  | 1992234     |
| Fees            | \$82.00     |

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State of Texas  
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon, and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones  
County Clerk  
El Paso County, TX

A handwritten signature in cursive script that reads "Delia Briones".

## NOTICE OF FORECLOSURE SALE

May 29<sup>th</sup>, 2026

### Deed of Trust ("Deed of Trust"):

Dated: April 26<sup>th</sup>, 2024  
Grantor: Genco Diversified LLC, A Texas Limited Liability Company dba  
Genco Metal Works  
Trustee: Robert T. Pearson  
Lender: Robert Malooly  
Recorded in: Doc.#20240030544 of the Real Property Records of El Paso  
County, Texas, Filed and Recorded on April 30<sup>th</sup>, 2024, in the  
Official Records of El Paso County, Texas.

### Legal Description:

#### Property (including any improvements):

(Parcel 1)

Description of a parcel of land being a portion of I.F. HARRISON SURVEY NO. 54, City of El Paso, El Paso County, Texas and being more particularly described by Metes and Bounds as follows:

Commencing for reference at a found Texas Department of Transportation Brass disk on the westerly right of way line of Paisano Dr. (U.S. 85) at parcel 17A, said point also lying North 10°39'28" East a distance of 8.20 feet from the northerly line of Willie Raza Way as shown of Texas State Highway Department right of way map of U.S. Highway No 80-A (RW1-4-33); said brass disk has a coordinate value of Y=10,665,922.89, X=373,303.41 in the Texas State Plane Central zone (NAD 83), Thence along the westerly right of way line of Paisano Dr. (U.S. 85) South 10°39'28" East (S 10°40'46" E, TX DOT) a distance of 261.19 feet to a Texas Department of Transportation brass disk; Thence along said right of way line South 15°43'09" East (S15°44'27" W, TX DOT) a distance of 264.19 feet to a set chiseled V on concrete for the "TRUE POINT OF BEGINNING"

Thence along said right of way line of Paisano Dr., South 15°43'09" East (South 15°44'27" East Vol. 494, Pg. 1156) a distance of 1101.84 feet to a set 1/2" rebar with cap marked TX 5152 on the easterly line of the IBWC American Canal Land Section 304;

Thence along said line North 41°53'37" West (North 41°43'57" West, Vol 494, Pg. 1156) a distance of 830.12 feet to a set 1/2" rebar with cap marked TX 51512 on the southerly line of Parcel 15, Exhibit I;

Thence along said line North 74°16'55" East (North 74°31'00" East, Exhibit I) a distance of 179.23 feet (179.54 feet, Exhibit I) to a point on the easterly line of Parcel 15, Exhibit I;

Thence along said line North 15°43'46" West (North 15°29'00" East, Exhibit I) a distance of 336.92 feet to a point on the southerly line of Parcel 8B-Exhibit C-Tract 2);

Thence along said line North 68°11'51" East (North 68°10'33" East, Vol. 494, Pg. 1156) a

distance of 188.05 feet to the "TRUE POINT OF BEGINNING" and containing 4.6201 acres of land more or less.

**(Parcel 2)**

Description of a parcel of land being a portion of I.F. HARRISON SURVEY NO. 54, City of El Paso, El Paso County, Texas and being more particularly described by Metes and Bounds as follows:

**THE TRUE POINT OF BEGINNING** being a found Texas Department of Transportation Brass disk on the westerly right of way line of Paisano Dr. (U.S. 85) at parcel 17A, said point also lying North 10°39'28" East a distance of 8.20 feet from the northerly line of Willie Raza Way as shown of Texas State Highway Department right of way map of U.S. Highway No 80-A (RW1-4-33); said brass disk has a coordinate value of Y=10,665,922.89, X=373,303.41 in the Texas State Plane Central zone (NAD 83),  
Thence along the westerly right of way line of Paisano Dr. (U.S 85) South 10°39'28" East (South 10°40'46" East, TX D.O.T.) a distance of 261.19 feet to a found Texas Department of Transportation brass disk;

Thence along said right of way line South 15°43'09" East (South 15°44'27" West, Vol. 494, Pg. 1156) a distance of 264.19 feet to a set 1/2" rebar with cap marked TX 5152 on the northerly line of Pedro Duran Way;

Thence along said line South 68°11'51" West (South 68°10'33" West, Vol. 494, Pg. 1156) a distance of 188.05 feet (188.03 feet, Vol. 494, Pg. 1156) to a set 1/2" rebar with cap marked TX 5152;

Thence leaving said line North 15°43'46" West (North 15°44'27" West, Vol. 494, Pg. 1156) a distance of 97.77 feet to a set 1/2" rebar with cap marked TX 5152;

Thence North 15°50'58" West (North 15°52'16" West, Vol. 494, Pg. 1156) a distance of 139.99 feet to a set 1/2" rebar with cap marked TX 5152;

Thence South 74°03'19" West (South 74°09'33" West, Vol. 494, Pg. 1156) a distance of 244.30 feet (244.00 feet, Vol. 494, Pg. 1156) to a set 1/2" rebar with cap marked TX 5152 on the easterly line of the American Canal of the I.B.W.C. land section file no. 304;

Thence along said line North 19°50'11" West (North 19°43'57" West, Vol. 494, Pg. 1156) a distance of 24.83 feet to a found aluminum capped rebar;

Thence along said line North 06°14'41" West (North 06°10'27" West, Vol. 494, Pg. 1156) a distance of 355.13 feet to a found aluminum capped rebar;

Thence along said line North 01°21'49" East (North 01°26'03" East, Vol. 494, Pg. 1156) a distance of 41.28 feet to a found nail in concrete;

Thence leaving said line North 80°03'49" East (North 80°10'03" East, Vol. 494, Pg. 1156) a distance of 399.82 feet (398.73 feet Vol. 494, Pg. 1156) to a set 1/2" rebar with cap marked

**TX 5152 on the westerly right of way line of Paisano Dr. (U.S. 85);**

**Thence along said line South 05°35'48" East (South 05°37'06" East, Vol. 494, Pg. 1156) a distance of 67.80 feet (66.74 feet Vol. 494, Pg. 1156) to the "TRUE POINT OF BEGINNING" and containing 4.7584 acres of land more or less.**

**(Parcel 3)**

**Description of a parcel of land being a portion of I.F. HARRISON SURVEY NO. 54, City of El Paso, El Paso County, Texas and being more particularly described by Metes and Bounds as follows:**

**Commencing for reference at a found Texas Department of Transportation Brass disk on the westerly right of way line of Paisano Dr. (U.S. 85) at parcel 17A, said point also lying North 10°39'28" East a distance of 8.20 feet from the northerly line of Willie Raza Way as shown of Texas State Highway Department right of way map of U.S. Highway No 80-A (RW1-4-33); said brass disk has a coordinate value of Y=10,665,922.89, X=373,303.41 in the Texas State Plane Central zone (NAD 83), Thence South 09°28'31" West a distance of 493.46 to a set 1/2" rebar with cap marked TX 5152 for the southeast corner of the herein described tract for**

**"THE TRUE POINT OF BEGINNING"**

**Thence South 68°04'19" West (South 68°26'00" West, vol. 1949, pg. 1484) a distance of 234.16 feet (236.20 feet vol. 1949, pg. 1484) to a set 1/2" rebar with cap marked TX 5152 on the easterly line of the American Canal of the I.B.W.C. land section file no. 304;**

**Thence along said line North 19°50'11" West (North 19°45'53" West, Vol. 1949, Pg. 1484) a distance of 164.78 feet to a set 1/2" rebar with cap marked TX 5152;**

**Thence North 74°03'19" East (North 74°09'33" East, Vol. 1949, Pg. 1484) a distance of 244.30 feet (244.00 feet vol. 1949, pg. 1484) to a set 1/2" rebar with cap marked TX 5152;**

**Thence South 15°50'58" East (South 15°52'16" East, Vol. 1949, Pg. 1484) a distance of 139.99 feet (140.00 feet vol. 1949, pg. 1484) to the "TRUE POINT OF BEGINNING" and containing 0.8369 acres of land more or less.**

**(Parcel 4)**

**Description of a parcel of land being a portion of I.F. HARRISON SURVEY NO. 54, City of El Paso, El Paso County, Texas and being more particularly described by Metes and Bounds as follows:**

**Commencing for reference at a found Texas Department of Transportation Brass disk on the westerly right of way line of Paisano Dr. (U.S. 85) at parcel 17A, said point also lying North 10°39'28" East a distance of 8.20 feet from the northerly line of Willie Raza Way as shown of Texas State Highway Department right of way map of U.S. Highway No 80-A (RW1-4-33); said brass disk has a coordinate value of Y=10,665,922.89, X=373,303.41 in the Texas State Plane Central zone (NAD 83), Thence South 02°18'58" East a distance of 905.88 feet to a set 1/2" rebar with cap marked TX 5152 on the northerly line of Rodolfo Roman Way for "THE**

## **TRUE POINT OF BEGINNING"**

**Thence along said right of way line South 74°16'55" West (South 74°31'00" West Exhibit I) a distance of 179.23 feet to a set 1/2" rebar with cap marked TX 5152 on the easterly line of the IBWC American Canal Land Section 304;**

**Thence along said line North 55°40'47" West (North 55°28'00" West, Exhibit I) a distance of 31.63 feet (32.03 Exhibit I) to a point from which a found 2" pipe bears South 78°52'55" East a distance of 0.20 feet;**

**Thence along said line North 35°34'47" West (North 35°22'00" West, Exhibit I) a distance of 38.92 feet to a point from which a found chiseled x bears North 74° 12'52" East a distance of 0.32 feet;**

**Thence along said line North 23°44'47" West (North 23°32'00" West, Exhibit I) a distance of 84.02 feet to a point from which a found aluminum capped rebar;**

**Thence along said line North 19°06'47" West (North 18°54'00" West, Exhibit I) a distance of 84.27 feet to a set 1/2" rebar with cap marked TX 5152;**

**Thence along said line North 07°14'47" West (North 07°02'00" West, Exhibit I) a distance of 44.28 feet (44.90 feet Exhibit I) to a point from which a found aluminum capped rebar bears North 18°23'32" West a distance of 1.07 feet;**

**Thence along said line North 19°50'11" West (North 19°28'30" West, Exhibit I) a distance of 137.75 feet (137.32 feet Exhibit I) to a set 1/2" rebar with cap marked TX 5152;**

**Thence leaving said line North 68°04'19" East (North 68°26'00" East, Exhibit I) a distance of 234.16 feet (234.45 feet Exhibit I) to a set 1/2" rebar with cap marked TX 5152;  
Thence South 15°43'46" East (North 15°29'00" East, Exhibit I) a distance of 434.69 feet to the "TRUE POINT OF BEGINNING" and containing 2.1483 acres of land more or less.**

**Secures:** Real Estate Lien Note ("Note") in the original principal amount of \$620,000.00 executed by Genco Diversified LLC ("Borrower") and payable to the order of Lender

### **Foreclosure Sale:**

**Date:** July 7<sup>th</sup>, 2026

**Time:** The sale of the Property will be held between the hours of 10:00 A.M. and 4:00 P.M. local time; the earliest time at which the Foreclosure Sale will begin is 10:00 A.M.

**Place:** El Paso County Coliseum  
4100 E. Paisano Drive, El Paso, Texas 79905

**Terms of Sale:** The Foreclosure Sale will be conducted as a public auction and the Property will be sold to the highest bidder for cash, except that Robert Malooly bid may be by credit against the indebtedness secured by the lien of the Deed of Trust.

Default has occurred in the payment of the Note and in the performance of the obligations of the Deed of Trust. Because of that default, Robert Malooly, the owner and holder of the Note, has requested Trustee to sell the Property.

The Deed of Trust encumbers real property. Formal notice is hereby given of Robert Malooly's election to proceed against and sell the real property described in the Deed of Trust in accordance with Robert Malooly's rights and remedies under the Deed of Trust and section 9.604(a) of the Texas Business and Commerce Code.

Therefore, notice is given that on and at the Date, Time, and Place for the Foreclosure Sale described above, Trustee will sell the Property in accordance with the Terms of Sale described above, the Deed of Trust, and applicable Texas law.

If Robert Malooly passes the Foreclosure Sale, notice of the date of any rescheduled foreclosure sale will be reposted and refiled in accordance with the posting and filing requirements of the Deed of Trust and the Texas Property Code.

The Foreclosure Sale will be made expressly subject to any title matters set forth in the Deed of Trust, but prospective bidders are reminded that by law the Foreclosure Sale will necessarily be made subject to all prior matters of record affecting the Property, if any, to the extent that they remain in force and effect and have not been subordinated to the Deed of Trust. For the avoidance of doubt, the Foreclosure Sale will not cover any part of the Property that has been released of public record from the lien and/or security interest of the Deed of Trust by Robert Malooly. Prospective bidders are strongly urged to examine the applicable property records to determine the nature and extent of such matters, if any.

Pursuant to section 51.009 of the Texas Property Code, the Property will be sold "AS IS," without any expressed or implied warranties, except as to the warranties (if any) provided for under the Deed of Trust. Prospective bidders are advised to conduct an independent investigation of the nature and physical condition of the Property.

Pursuant to section 51.0075(a) of the Texas Property Code, Trustee reserves the right to set further reasonable conditions for conducting the Foreclosure Sale. Any such further conditions shall be announced before bidding is opened for the first sale of the day held by Trustee.

Assert and protect your rights as a member of the armed forces of the United States. If you are or your spouse is serving on active military duty, including active military duty as a member of the Texas National Guard or the National Guard of another state or as a member of a reserve component of the armed forces of the United States, please send written notice of the active duty military service to the sender of this notice immediately.

Dated the 29 day of May 2026.

  
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**ROBERT T. PEARSON**, Trustee